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Rhetorical Analysis Essay

"Thou shalt not bear false witness against thy neighbor" (*King James Bible*, Exodus 20:16). The Ninth Commandment is a moral imperative to never make a false accusation. But what happens when a person bears false witness against themselves? In 2016, the National Science Foundation (NSF) produced a short video titled "What Does Science Tell Us about False Confessions?" To answer this question, the NSF enlists Professor of Psychology at John Jay College of Criminal Justice, Saul Kassin. Kassin's research shows that neither judge nor jury can tell the difference between a true confession or a false one. He argues that a person's inability to separate true confessions from false ones means confessions should be weighed equally with other evidence. Kassin states his case by telling an eye-opening story about how interrogators coerce innocent suspects into making false confessions ("What Does Science"). Clever use of rhetorical modes transforms the video from a simple picture show into an effective argument.

Kassin opens the video with an anecdote that presents the viewer with a question, "Would you ever confess to a crime [you] did not commit?" ("What Does Science" 00:10-00:13). The obvious answer is no. But asking a question with a seemingly self-evident answer is just a primer. Kassin is leveraging the linguistic mode in a bid for the audience's attention by encouraging participation. However, holding attention requires something more dramatic and Kassin delivers.

Upping the ante, the story is modified to include some darker elements that test the viewer's resolve. "[You are] isolated, alone, away from anything and everyone that is familiar… you deny your involvement, you're called a liar" ("What Does Science" 1:17-1:28). The viewer

is then asked to consider the situation from the perspective of someone less capable of defending themselves, an adolescent, someone facing mental health issues, someone in a state of shock. Piling onto the heap, Kassin insists that "Everybody has a breaking point" and an interrogator will find it ("What Does Science" 00:56-00:58). This series of modifications is meant to show the viewer that interrogators take advantage of state of mind to force a confession. With the stakes raised, Kassin leaves the viewer believing a reasonable reaction is to look for a way out, maybe even an easy one.

Pressured by an interrogator, Kassin suggests innocent people rationalize their way into confession. "I'll give them their statement… they'll investigate… and they'll see I had nothing to do with this" ("What Does Science" 1:41-1:50). To get out of a difficult situation, a suspect will confess in hopes of acquittal upon further inquiry. This tells the viewer why an innocent person might confess to a crime and suggests that it is not that uncommon. It also leaves the viewer wondering when the suspect will get a second look.

Having reached terminal velocity, Kassin hits the brakes. "When juries hear confessions, they will trust [those confessions] … more than they will trust anything else" ("What Does Science" 2:25-2:31). This serves as a sort of informational whiplash to disabuse the viewer of any notion that an investigation will find the suspect innocent. But there is another message at play. Kassin is telling viewers that suspects are not the only ones affected by false confessions. Jurors are guilty of accepting these confessions as a *fait accompli*. Bringing the jury into the fold increases the relevance of the anecdote to the viewer because it presents a more realistic point of entry that the suspect anecdote renders somewhat fantastic.

Furthermore, Kassin's extemporaneous delivery shores up the linguistic element because it feels as though the story is biographical in nature. Given Kassin's *bona fides*, it is wise to

assume he has seen this situation before. The NSF's choice to feature Kassin was the right decision. But a compelling story is only part of what makes a video a useful tool for presenting an argument.

Fortunately, in the NSF's toolbox of rhetorical modes is a series of images and video clips which add subtext and drama to the story. Thematically, these visual modes are split into two parts. First is the suspect and the interrogator. Spatially, the suspect, dressed in black, is set against an authority figure, the interrogator, who is dressed in white and wearing a badge around her neck. To the left of the interrogator is a light shining directly into the face of the suspect. The posture of the suspect suggests that he is overwhelmed. Moreover, the interrogator appears to be insisting on a confession. This evinces the claim that confessions are often forced from beleaguered suspects through intimidation.

The second visual device employed is more nuanced. The viewer is presented with an image of the scales of justice, a gavel, and a block. Both images are seen rotating in a clockwise direction in the background of a couple video clips. The scales of justice are symbolic of evidence equally measured. The gavel and block are symbolic tools of judgment. An active clockwise rotation of both suggests that when a confession is made, judgment is only a matter of time. The underlying meaning is a confession tips the scales irrevocably against the suspect, regardless of whether it is true or false.

Finally, the linguistic and visual elements are supported by the aural component. Filling in during dramatic pauses and acting as a supplement to the various video clips and pictures is a blues melody. In fact, the tune is reminiscent of Stevie Ray Vaughn's, "Tin Pan Alley," a song about a crime-ridden section of town whose residents are plagued by hardship ("Tin Pan Alley"). While Tin Pan Alley might be the roughest place Stevie Ray Vaughn had ever been, Kassin sings

a different tune, arguing that the roughest place anyone can be is between an interrogator and a confession. In terms of both the linguistic and visual modes, the music harmonizes with the story by adding a melancholy undertone.

Kassin's varied employment of multimodal elements proves, beyond a preponderance of the evidence, that balancing confessions against other facts is sensible. The anecdote makes it possible for the average person to see themselves in the situation described by Kassin, be it as a juror or the suspect. He goes a step further by causing the viewer to question the courage of their convictions through a series of ever-increasing stakes, which are only matched in proportion by ever-diminishing options. Like water down a drain, the viewer spirals toward a single choice, confession. As a sewer system is unable to distinguish clean water from grey, when it comes to confessions, the legal system is unable to distinguish fact from fiction. Judges, juries, prosecutors, and the layman alike should take this as a warning. Confessions do not tell a complete story.

Paying attention to this warning may seem onerous for most viewers because the scenario is extraordinary. However, it is not so extraordinary to be selected for jury duty. As a juror, it is possible to send someone to prison for a crime they did not commit. Considering a little more evidence is less onerous on the conscience than living with the idea that someone spent years in prison for making a false confession under pressure. And in the unlikely event that a viewer should ever find themselves facing down an interrogator, they would do well to heed this message. To bear false witness against oneself is to make life a living hell.

Works Cited

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